

RESOLUTION # _____

A RESOLUTION APPROVING A PROPOSITION TO IMPOSE THE 1% SPECIFIC PURPOSE SALES AND USE TAX IN LARAMIE COUNTY, STATE OF WYOMING, FOR THE EXCLUSIVE PURPOSE OF FUNDING SPECIFIC PURPOSES FOR SPECIFIC AMOUNTS; THE PROPOSITIONS TO BE VOTED ON AT THE PRIMARY ELECTION TO BE HELD ON TUESDAY, AUGUST 21, 2012.

WHEREAS, pursuant to Wyo. Stat. §§ 39-15-203(a)(iii), 39-15-204(a)(iii), 39-16-203(a)(ii), 39-16-204(a)(ii), and 39-16-202(e) counties may impose an excise tax not to exceed two percent (2%) upon retail sales of tangible personal property, admissions and services made, and upon storage, use and consumption of tangible personal property, within the county, for specific purposes and in specific amounts as authorized by the qualified electors of the county (hereinafter the "Tax"); and

WHEREAS, the Board of County Commissioners (the "Commissioners") of Laramie County, State of Wyoming, (the "County"), in response to the needs of the County and requests received from the City of Cheyenne, the Town of Pine Bluffs, the Town of Burns, and the Town of Albin (hereinafter, being sometimes individually referred to as "Sponsoring Entity" and collectively referred to as the "Sponsoring Entities"), has determined to make a source of funding available through imposition of an excise tax not to exceed one percent (1%) in the following specific amounts for the following specific purposes (the "Projects"):

1. \$33,000,000 to the City of Cheyenne to construct an all-purpose Recreation Center.
2. \$25,000,000 to the City of Cheyenne for a Public Safety building that will house the Cheyenne Police Department, Cheyenne Victim Services, Cheyenne Fire & Rescue Administration, Laramie County 911 Communications Center and the Laramie County Emergency Operations Center.
3. \$21,851,407 to Laramie County to construct a year round multi-purpose event center at Laramie County Fairgrounds at the Laramie County Archer Complex.
4. \$16,000,000 to the City of Cheyenne for renovation and expansion of the Cheyenne Botanic Gardens, including safety improvements to access and adjoining roads.
5. \$7,000,000 to Laramie County for the purchase of upgraded radio and telecommunications equipment for the Emergency 911 Combined Communications Center.

6. \$685,000 to Laramie County for the purchase of in-car digital video recorders, radars and updated radios for sheriff's patrol cars, renovation of the former Public Works site for secure property and evidence storage and future state-mandated e-citation system.
7. \$1,000,000 to the City of Cheyenne for the purchase of replacement portable police radios and an upgrade to the radio system to be compatible with the Emergency 911 Combined Communications system.
8. \$300,000 to the Town of Pine Bluffs for completion of the water main loop.
9. \$210,036 to the Town of Burns for Fourth Street sewer line redirection.
10. \$257,000 to the Town of Burns for installation of utility casings under the Union Pacific Railroad tracks.
11. \$170,000 to the Eastern Laramie County Solid Waste District to purchase a loader.
12. \$432,000 to the Town of Albin to purchase and install a booster pump to increase water pressure for residents, businesses, and fire district.
13. \$90,000 to the Town of Pine Bluffs to repair sewer lagoon valves.
14. \$4,800,000 to the City of Cheyenne to provide flood control and water quality improvements for the Capitol Basin.
15. \$1,493,690 to the Town of Burns for Burns-Plex repairs and remodeling.
16. \$900,000 to the Town of Pine Bluffs to pave Butler Avenue
17. \$800,000 to the Town of Pine Bluffs to pave Black Boulevard.
18. \$500,000 to the Town of Albin for replacement of deteriorating sewer lines.
19. \$900,000 to the Town of Pine Bluffs for a new water tank.
20. \$636,993 to the Town of Burns for design and construction of Liberty Park.
21. \$700,000 to the City of Cheyenne for development of the 17th Street corridor to include design and construction of improvements and enhancements, lighting, maintenance, operations.
22. \$1,342,280 to Laramie County Fire District #10 for the construction of a new building to be used as an additional fire station and a sanctuary for travelers caught on I-80 during

inclement weather.

23. \$187,000 to Laramie County Fire District #2 to complete the remodel of Station #1 located on Yellowstone Road.
24. \$170,000 to Laramie County Fire District #3 to complete the construction of a fire station, water well, septic system, and back-up generator at Whitecrest on US Highway 85.
25. \$375,860 to Laramie County Fire District #4 to construct a new fire station, water well and septic system at County Road 207 and County Road 140.
26. \$305,000 to Laramie County Fire District #8 to construct a new garage, remodel of existing facility and install an Environmental Protection Agency compliant fueling system.
27. \$3,000,000 to the City of Cheyenne for the purchase of equipment needed for landfill operations and expansion of the Felix Pino Transfer Station.
28. \$4,800,000 to the Cheyenne Airport Board in grant matching funds to aid in the construction of a new terminal for the Cheyenne Regional Airport.
29. \$400,000 to the Town of Pine Bluffs to rehabilitate Reher Park
30. \$150,000 to the Town of Pine Bluffs to correct drainage and repair the foundation at the Archeological site.
31. \$148,423 to the Town of Burns for maintenance building renovation and expansion.
32. \$189,000 to the Town of Albin to purchase a backhoe, skid-steer, and small tractor with attachments.
33. \$176,400 to the Town of Burns for elevation mapping for drainage and master plan development.
34. \$77,458 to the Town of Burns to purchase a skid-steer with accessories.
35. \$5,000,000 to the City of Cheyenne for renovations to the Municipal Pool in Lions Park.
36. \$2,000,000 to the City of Cheyenne for planning and engineering of a new overpass crossing the Union Pacific Railroad tracks at Christensen Road.
37. \$1,013,470 to Laramie County for the purchase and installation of outdoor warning sirens and related computer system upgrades.

38. \$800,000 to the Town of Pine Bluffs for the retirement of debt.
39. \$555,000 to the Town of Albin to purchase land to construct a mobile home and recreational vehicle park.
40. \$350,000 to the Town of Pine Bluffs to replace electrical meters.
41. \$310,000 to the Town of Pine Bluffs to rehabilitate the north lift station.
42. \$324,000 to the Town of Albin to construct an addition to the Community Center.

WHEREAS, the Commissioners have determined that a 1% Specific Purpose Sales and Use Tax should be imposed within the County pursuant to Wyo. Stat. §§ 39-15-203(a)(iii), 39-15-204(a)(iii), 39-16-203(a)(ii), 39-16-204(a)(ii), and 39-16-202(e) in order to fund the planning, construction, furnishing, equipping, acquisition and improvement of land and, to the extent necessary and allowed by law, the pledge to or payment of operation and maintenance, debt service and/or lease service payments thereon, and, if necessary and/or available, to be used to leverage or match federal/and or state grant funds, for the above-referenced Projects; and

WHEREAS, the Commissioners have determined it is necessary to submit the proposition for imposition of the Tax to the qualified registered electors of the County; and

WHEREAS, pursuant to the provisions of Wyo. Stat. §§ 39-15-203(a)(iii)(A) and 39-16-203(a)(ii)(A), before any proposition to impose the Tax shall be placed before the electors of the County, the Commissioners and the governing bodies of at least two-thirds (2/3) of the incorporated municipalities within the County shall adopt a resolution approving the propositions, setting forth a procedure for qualification of a ballot question for placement on the ballot, and specifying how excess funds shall be expended; and

WHEREAS As to Proposition # 1, the Recreation Center for the City of Cheyenne: The Governing Body of the City of Cheyenne by resolution has declared that in the event that this project is approved by the voters of Laramie County, no tax collected will be applied to this project until any amounts approved for other projects on this ballot have been collected in full. The governing body of the City of Cheyenne by execution of the resolution approving this Specific Purpose Excise Tax, has declared that waiver of the right to immediate distribution of funds from the County Treasurer pursuant to W.S. 39-15-211 (b)(ii) in regard to this proposition is of necessary and definable benefit to the City of Cheyenne as defined in *Mariano & Associates, P.C. v. Board of County Com'rs of Sublette County* 737 P.2d 323 (Wyo., 1987);

WHEREAS, the Commissioners have proposed an authorization resolution detailing the propositions to be placed before the electorate;

NOW THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, STATE OF WYOMING, that the City of Cheyenne is in accord with the Authorizing Resolution as proposed, a copy of which is attached as EXHIBIT A and by this specific reference made part hereof,

BE IT FURTHER RESOLVED that passage of this resolution by the governing body of the City of Cheyenne shall constitute approval as required by Wyo. Stat. § 39-15-203 (a)(iii)(A) and Wyo. Stat. § 39-16-203 (a)(ii)(A); and

BE IT FURTHER RESOLVED that if any part or provision of this resolution is ever determined to be invalid or unenforceable, such determination shall not affect the remaining parts and provisions hereof, the intention being that each part or provision of this resolution is severable.

ADOPTED AND APPROVED as of the ____ day of _____, 2012.

CITY OF CHEYENNE

(SEAL)

Richard L. Kaysen, Mayor

ATTEST:

Carol Intlekofer, City Clerk